

TENTATIVE RULING

UniFirst Corporation
v.
North County Industrial Machine Shop, Inc.
26CV001842

Motion on Petition to Confirm Contractual Arbitration Award

Hearing Date: August 14, 2026

Plaintiff UniFirst Corporation's ("Plaintiff") motion to confirm its arbitration award entered against Defendant North County Industrial Machine Shop, Inc. ("Defendant") is **GRANTED**.

Any party involved in an arbitration award can petition the court to confirm, correct, or vacate it. [Code Civ. Proc. § 1285.] "If an award is confirmed, judgment shall be entered in conformity therewith..." [Code Civ. Proc. § 1287.4.] The judgment becomes collectible in the same way as another judgment. [*Ibid.*] "The allegations of a petition are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed." [Code Civ. Proc. § 1290.]

Here, Defendant has not yet responded to the Petition to Confirm the Contractual Arbitration Award ("Petition") or sought to vacate the award. Hence, the Court accepts the Petition's allegations as true and the motion is **GRANTED**, especially since the Petition was filed and served over four months ago and judicial review of arbitration awards is very limited. [*Reed v. Mutual Service Corp.* (2003) 106 Cal.App.4th 1359, 1365; *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 10; Code Civ. Proc. §§ 1286.4, 1286.8, and 1288.]

Plaintiff shall prepare and lodge the Proposed Judgment in conformity with the award and the Proposed Order consistent with this Tentative Ruling.